

FORM F5 (RULE 4-4 (2))

No. _____
Registry _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

COUNTERCLAIM

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

Filed by: _____ (the "respondent")

This counterclaim has been made by the above-named respondent(s) for the relief set out in section 1 below.

If you intend to respond to this counterclaim, you or your lawyer must

- (a) file a response to counterclaim in Form F6 in the above-named registry of this court within 30 days after the date on which a copy of the filed counterclaim was served on you, and
- (b) serve a copy of the filed response to counterclaim on all parties.

Orders, including orders granting the relief claimed, may be made against you if you fail to file the response to counterclaim within the 30 day period referred to above.

1. Spousal relationship history

The claimant, _____, and the respondent, _____	
☐ began to live together in a marriage-like relationship on _____	_____
☐ were married on _____	_____
	at _____
☐ separated on _____	_____
☐ were divorced from each other by order made on _____	_____

2. Counterclaim

The respondent is asking for the following:

☐ An order for divorce

☐ An order respecting child(ren)

☐ An order for spousal support

☐ An order relating to family property and family debt

☐ Another order

☐ An order for costs

☐ An order to ☐ confirm or ☐ set aside a written agreement dated _____

in respect of

☐ spousal support

☐ child support

☐ division of property and/or debt

☐ other

for the following reasons:

2.1 Official language choice for *Divorce Act* proceedings (see Notice to Respondent below)

The respondent intends to file documents, give evidence or make submissions in this proceeding in the

- ☐ English language
- ☐ French language
- ☐ English language and French language (bilingual)

3. The respondent's address for service is

Address for service:

Fax (optional):

Email (optional):

Date: _____

Signature of _____

☐ Filing party ☐ Lawyer for filing party(ies)

Note to Claimant AND Respondent: You must file **financial information** (Form F8) if any of the following apply:

- there is a claim against you for spousal support or you are claiming spousal support;
- there is a claim by either party for the division of property and/or debts under Part 5 or 6 of the *Family Law Act*;
- there is a claim against you for the support of a child, OR
- you are claiming child support **unless all** of the following conditions apply:
 - (a) you are making no claim for any other kind of support;
 - (b) the child support is for children who are not stepchildren;
 - (c) none of the children for whom child support is claimed is 19 years of age or older;
 - (d) the income of the person being asked to pay child support is under \$150 000 per year;
 - (e) you are not applying for special expenses under section 7 of the child support guidelines;
 - (f) you are not applying for an order under section 8 of the child support guidelines;
 - (g) you are not applying for an order under section 9 of the child support guidelines;
 - (h) you are not making a claim based on undue hardship under section 10 of the child support guidelines.

If you do not file the financial information that is required, the court may attribute an amount of income to you, and make a support award against you, based on that amount.

Notice to Respondent: under **section 23.2 of the *Divorce Act***, you may choose to file pleadings or other documents, including this form, give evidence or make submissions in any *Divorce Act* proceeding in either of the two official languages of Canada (English or French).

Rule 1-1(1) of the Supreme Court Family Rules defines "*Divorce Act* proceeding" as follows:

"*Divorce Act* proceeding" means a family law case in which an order is sought under the *Divorce Act*.

You may file a Notice of Extension – Official Languages in Form F86.2 and receive an additional 10 days to file this counterclaim (Form F5) in accordance with Rule 20-7 (8) of the Supreme Court Family Rules.

FORM F5
(RULE 4-4 (2))
SCHEDULE 1 – DIVORCE

1. Personal Information		
	Claimant	Respondent
Birthdate:		
Habitually resident in British Columbia since:		
Surname at birth:		
Surname immediately before marriage:		
Marital status immediately before marriage:	☐ never married ☐ divorced ☐ widowed	☐ never married ☐ divorced ☐ widowed
Place of marriage:	City: _____ Prov/State: _____ Country: _____	

2. Grounds for the respondent's claim for divorce

☐ The respondent asks for an order for divorce on these grounds:
☐ Divorce is claimed as a result of having lived separate and apart. ☐ Divorce is claimed on grounds other than having lived separate and apart. Divorce claimed as a result of having lived separate and apart. (i) ☐ The respondent and respondent's spouse have lived separate and apart since _____ AND ☐ The respondent and respondent's spouse have not lived together since then ☐ The respondent and respondent's spouse have lived together again during the following period(s), in an unsuccessful attempt to reconcile: From: _____ to: _____ From: _____ to: _____ <i>[if more space is required - attach page and state "See Attached"]</i>

Divorce claimed on grounds other than having lived separate and apart.

(ii) ☐ **Other grounds**, under section 8 (2) (b) of the *Divorce Act* (Canada):

☐ **Adultery** (the claimant has committed adultery)

☐ **Cruelty** (the claimant has treated the applicant with physical or mental cruelty of such a kind as to make continued cohabitation intolerable)

AND

☐ The respondent has not condoned any act relied on under section 8 (2) (b) of the *Divorce Act* (Canada) as a ground for divorce.

3. The respondent confirms that:

☐ There is no possibility of reconciliation.

☐ I do not know about and I am not involved in any arrangement to make up or to hide evidence or to deceive the court to obtain a divorce

4. Proof of marriage

☐ A certificate of marriage or of registration of marriage _____ has been filed

☐ A certificate of marriage or of registration of marriage is not being filed with this counterclaim because

_____ and the certificate will be filed before this claim is set down for trial or an application is made for an order of divorce

☐ It is impossible to obtain a certificate of marriage or of registration of marriage because:

5. Children

☐ There are no children of the marriage as defined by the *Divorce Act* (Canada)

[OR]

☐ The children of the marriage are:

Child Name (<i>Surname, First Second Third</i>)	Birth Date	Resides with

[if more space is required - attach page and state "See Attached"]

The following certificate must be completed by each party to a divorce claim.

PARTY'S CERTIFICATE (*Divorce Act (Canada)*, s. 7.6)

☐ By checking this box, I, _____, certify that I am aware of my duties under sections 7.1 to 7.5 of the Divorce Act (Canada), which say:

- 7.1 A person to whom parenting time or decision-making responsibility has been allocated in respect of a child of the marriage or who has contact with that child under a contact order shall exercise that time, responsibility or contact in a manner that is consistent with the best interests of the child.
- 7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.
- 7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process
- 7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.
- 7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

The following certificate must be completed for each party to a divorce claim who is represented by a legal advisor.

LEGAL ADVISER'S CERTIFICATE (*Divorce Act (Canada)*, S. 7.7 (3))

- ☐ By checking this box, I, _____, legal advisor for _____
certify that I have complied with section 7.7 of the *Divorce Act (Canada)*, which says:
- 7.7. (1) Unless the circumstances of the case are of such a nature that it would clearly not be appropriate to do so, it is the duty of every legal adviser who undertakes to act on a spouse's behalf in a divorce proceeding
- (a) to draw to the attention of the spouse the provisions of this Act that have as their object the reconciliation of spouses; and
 - (b) to discuss with the spouse the possibility of the reconciliation of the spouses and to inform the spouse of the marriage counselling or guidance facilities known to the legal adviser that might be able to assist the spouses to achieve a reconciliation.
- (2) It is also the duty of every legal adviser who undertakes to act on a person's behalf in any proceeding under this Act
- (a) to encourage the person to attempt to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process, unless the circumstances of the case are of such a nature that it would clearly not be appropriate to do so;
 - (b) to inform the person of the family justice services known to the legal adviser that might assist the person
 - (i) in resolving the matters that may be the subject of an order under this Act, and
 - (ii) in complying with any order or decision made under this Act; and
 - (c) to inform the person of the parties' duties under this Act.

FORM F5
(RULE 4-4 (2))
SCHEDULE 2 – CHILDREN

1. Identification of child(ren)

The respondent is asking for an order in respect of the following child or children:

Child's Full Legal Name	Child's Birth Date	Child's Relationship to the Claimant	Child's Relationship to the Respondent	Child habitually resident in BC since	Child now living with

[if more space is required - attach page and state "See Attached"]

2. Orders sought

The respondent is asking for the following order(s):

- ☐ an order respecting arrangements for parenting
- ☐ an order for child support

3. Current arrangements for parenting

Current arrangements for parenting are:

4. Proposed arrangements for parenting

The respondent proposes the following arrangements for parenting:

The respondent is asking for this order under

☐ the *Divorce Act* (Canada) ☐ the *Family Law Act*

5. Current child support arrangements

Current child support arrangements are:

6. Income of person being asked to pay child support

☐ The respondent does not know the income of the person being asked to pay child support

☐ The respondent believes that the income of the person being asked to pay child support is

\$ _____

based on these facts:

7. Proposed child support arrangements

The respondent is asking for:

☐ support in the amount set out in the child support guidelines table, commencing on _____ for the following child(ren):

☐ special or extraordinary expenses in accordance with section 7 of the child support guidelines, commencing on _____ for the following child(ren):

☐ an order for support in an amount different than the amount set out in the child support guidelines table, commencing on _____ for the following child(ren):

The respondent is asking for an order for child support under

☐ the *Divorce Act* (Canada)

☐ the *Family Law Act*

FORM F5
(RULE 4-4 (2))
SCHEDULE 3 – SPOUSAL SUPPORT

1. Current arrangements for spousal support

The current arrangements for spousal support are:

2. Proposed spousal support arrangements

☐ The respondent is asking for an order for spousal support as follows:

☐ The respondent is asking for an order for spousal support under
☐ the *Divorce Act* (Canada) ☐ the *Family Law Act*

3. Income of claimant and respondent

The respondent's gross annual income is \$ _____

☐ The respondent does not know what the claimant's income is

☐ The respondent believes that the claimant's gross annual income is \$ _____

based on these facts:

Note to Claimant AND Respondent: You must file **financial information** (Form F8) if there is a claim by you or against you for spousal support.

If you do not file the financial information that is required, the court may attribute an amount of income to you and make a support award against you, based on that income.

FORM F5
(RULE 4-4 (2))
SCHEDULE 4 – PROPERTY

1. The respondent's claims

A Property and debt claims under the *Family Law Act*

The respondent is asking for an order for:

- ☐ equal division of family property and family debt
- ☐ unequal division of family property and family debt, as follows and on the following grounds:

Identify any relevant debt to the extent that it is known at this time:

The address and legal description of any real property (land and buildings) in which the respondent claims an interest as a family property is:

The respondent pleads the following property as excluded from family property under section 85 of the *Family Law Act* (explain the basis for the exclusion):

B Other property claims

The respondent claims:

- ☐ occupancy rent / occupational rent
- ☐ an interest in the following property:

-
- ☐ an order for compensation instead of an interest in the property described as:

on the following grounds:

2. Certificate of Pending Litigation

- ☐ The respondent is applying for a Certificate of Pending Litigation to be registered against the following real property (land or building):

FORM F5
(RULE 4-4 (2))
SCHEDULE 5 – OTHER ORDERS

The respondent is asking for the following orders:

☐ an order under the <i>Name Act</i> that the respondent's name be changed				
Surname	First Name	Second Name	Third Name	
from: _____	_____	_____	_____	
to: _____	_____	_____	_____	
☐ the following additional orders under the <i>Family Law Act</i>				
<i>[if more space is required - attach page and state "See Attached"]</i>				
☐ other orders				
<i>[if more space is required - attach page and state "See Attached"]</i>				